

Biswanath Dey vs Smt. Gopa Dey (Dutta) on 20 August, 2015

Author: Ishan Chandra Das

Bench: Ishan Chandra Das

IN THE HIGH COURT AT CALCUTTA CIVIL REVISIONAL JURISDICTION APPELLATE SIDE
Present:

The Hon'ble Justice Ishan Chandra Das C.O. 4135 of 2013 Biswanath Dey

-Vs-

Smt. Gopa Dey (Dutta)

For the Petitioner : Mr. Sudip Ghosh Chowdhury

Heard on : 20.08.2015

Judgement on: 20.08.2015

Ishan Chandra Das, J. :-

Heard the learned Counsel for the petitioner-husband. Despite service of notice, none appears on behalf of the opposite party. Affidavit-of-service filed today in court be kept on record.

In the instant revisional application, the petitioner-husband assailed the order of maintenance passed by the learned Additional District Judge, 1st Court at Hooghly dated 18th June, 2013 in Matrimonial Suit No. 60 of 2012 where the wife-opposite party was granted a sum of Rs.5,000/- per month towards interim alimony in terms of Section 24 of the Hindu Marriage Act and a sum of Rs.10,000/- towards costs of litigation.

Learned Counsel for the husband-petitioner in course of hearing drew my attention to the finding of the learned Trial court at page 3 of the order and the list of dependants as reflected from the application for registration of the medical card at page 42 of the application and pointed out that the learned Trial court totally ignored the existence of the minor daughter who is residing with the husband-petitioner and he has to maintain her. He also submitted that this aspect was not duly considered by

the learned Trial court in deciding the quantum of maintenance of the wife-opposite party and the other dependants of the husband-petitioner. He proposed that the order impugned should be set aside and the learned Trial court be directed to rehear the petition under Order 24 of the Hindu Marriage Act once again taking into consideration the number of dependants of the husband- petitioner.

I have given my anxious thought over the matter. This is a suit of 2012 and the matter is pending for long three years. If the order impugned is set aside, it would affect the interest of both the parties by way of lingering the litigation and in my considered opinion, justice will be subserved if a part of the quantum of maintenance is reduced.

Hence, taking into account the submission of the learned Counsel of the husband-petitioner, I modify the order of the learned Trial court by reducing the quantum of maintenance from Rs.5,000/- per month to Rs.4,500/- per month. The rest part of the order of the learned Trial court being Order No. 12 dated 18th June, 2013 remains unaltered.

The learned Trial court is directed to expedite the disposal of the Matrimonial Suit No. 60 of 2012 as early as possible. Parties are asked to extend co-operation for the same. This revisional application thus stands disposed of. There will be no order as to costs.

Let urgent xerox certified copy of this order, if applied for, be given to the learned Advocate of the parties on usual undertaking.

[ISHAN CHANDRA DAS, J.] akd